

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stanislav Sazonov	Team: Team # 4	CCRB Case #: 201305459	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/16/2013 3:40 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 120	18 Mo. SOL 12/16/2014	EO SOL 12/16/2014	
Date/Time CV Reported Wed, 06/19/2013 1:09 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/19/2013 1:09 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Kimberly Mcknight	24718	942170	120 PCT
2. POM Brian Schulman	08380	939435	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Brian Schulman	Abuse: PO Brian Schulman stopped § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
B.POF Kimberly Mcknight	Abuse: PO Kimberly Mcknight stopped § 87(2)(b) and § 87(2)(b)	§ 87(2)(b)
C.POM Brian Schulman	Discourtesy: PO Brian Schulman spoke discourteously to § 87(2)(b)	§ 87(2)(b)
D.POM Brian Schulman	Abuse: PO Brian Schulman damaged § 87(2)(b)'s property.	§ 87(2)(b)

Case Summary

On June 19, 2013, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board (CCRB) by telephone (encl. 4A-4B).

On June 16, 2013, at approximately 3:40 p.m., § 87(2)(b) was standing in the vicinity of § 87(2)(b) and § 87(2)(b) in Staten Island, with his associates, § 87(2)(b) and § 87(2)(b). PO Brian Schulman from the 120th Precinct and PO Kimberly McKnight currently of the 121st Precinct, but was assigned to the 120th Precinct at the time of the incident, stopped § 87(2)(b) and § 87(2)(b). The following allegations resulted:

Allegation A – Abuse of Authority: PO Brian Schulman stopped § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: PO Kimberly McKnight stopped § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

§ 87(2)(g)

Allegation C – Discourtesy: PO Brian Schulman spoke discourteously to § 87(2)(b)

§ 87(2)(g)

Allegation D – Abuse of Authority: PO Brian Schulman damaged § 87(2)(b)'s property.

§ 87(2)(g)

Results of Investigation

Video Footage

- § 87(2)(b) provided video footage he filed using his cell phone that partially captured the incident.

Summary of Video Footage

The video is twenty seven seconds long. The male officer, identified in the video by his name and shield as PO Schulman is heard saying, “You get arrested how many times a week?” A male, identified by PO Schulman as § 87(2)(b) is heard saying something illegible in response, and PO Schulman replied, “I’m not talking to you. I am talking to § 87(2)(b).” A female officer, also identified on the video as PO McKnight stood by PO Schulman. PO Schulman continued talking to § 87(2)(b) off camera, who asked PO Schulman why he was arresting him. PO Schulman said that he was not arresting § 87(2)(b). § 87(2)(b) said something illegible to PO Schulman, and PO Schulman responded, “Stop fucking being annoying.” § 87(2)(b) laughed in response.

PO Schulman directed his attention to the person who was filming the incident, known to the CCRB to be § 87(2)(b) and asked him if the cell phone belonged to him. § 87(2)(b) said yes, and PO Schulman asked to see the identification for the telephone. Two seconds before the video ends, a male individual wearing a red baseball cap, a white towel over it and a red t-shirt appears on the video. PO Schulman identified the individual as § 87(2)(b) (encl. 3A).

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, who is 5'8" tall, 130 pounds, with black hair and brown eyes. § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a telephone statement to the CCRB on June 20, 2013 (encl. 5A), and was interviewed at the CCRB on July 2, 2013 (encl. 5B-5C). § 87(2)(g)

On June 15, 2013, at approximately 2:45 p.m., § 87(2)(b) was standing by a convenience store located on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Staten Island. Prior to arriving at the incident location, § 87(2)(b) his cousin, § 87(2)(b) and his friend, § 87(2)(b) were walking from their friend's house whom they were visiting. § 87(2)(b) § 87(2)(b) and § 87(2)(b) did not stop or greet anyone on the way to the convenience store.

Upon arrival at the convenience store, § 87(2)(b) met four other individuals, one of who was identified via the CCRB investigation as § 87(2)(b) § 87(2)(b) § 87(2)(b) and one of their associates, identified via the CCRB investigation as § 87(2)(b) went into the convenience store where they spent approximately five minutes buying food. When they exited the store, they were standing outside for approximately two minutes. § 87(2)(b) did not greet any passerby and he did not see any of his associates do so. § 87(2)(b) said that they were not yelling or being loud while they were standing for two minutes.

A patrol car with two uniformed police officers pulled up to the group. The two officers, who were identified via the video footage as PO Schulman and PO McKnight, exited the car. PO McKnight ordered the group to stand against the wall. In his telephone statement, § 87(2)(b) said that both officers told only him and § 87(2)(b) to stop. Everyone in the group complied with the instructions and backed up into a wall. The group was facing the officers. PO Schulman was described as a stocky white male in his early thirties, approximately 5'5" tall and with short blond hair. PO McKnight was described as a Hispanic female in her late twenties, who stood approximately 5'3" tall, weighed one hundred and sixty pound and had long black hair. PO Schulman approached § 87(2)(b) § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) repeatedly asked, "What did we do?" PO Schulman responded but § 87(2)(b) could not hear. § 87(2)(b) said that PO Schulman said to § 87(2)(b) something about him getting arrested. PO Schulman then approached § 87(2)(b) and told him that they were looking for him because he fit the description of a perpetrator who was described as a black male wearing grey pants and a white shirt. § 87(2)(b) asked PO Schulman what did he do, and PO Schulman grabbed § 87(2)(b) right arm and attempted to pull it behind his back. § 87(2)(b) pulled away from PO Schulman and kept asking what did he do and why PO Schulman was arresting him. PO Schulman released § 87(2)(b) arm, told him that he was not arresting him and did not pursue § 87(2)(b) further. One of the individuals from the group, whom § 87(2)(b) could not describe, said, "He always does it," referring to PO Schulman. PO Schulman did not respond. PO McKnight stood silently and monitored the rest of the group.

§ 87(2)(b) took out his telephone and began recording the incident. § 87(2)(b) recorded PO Schulman tell § 87(2)(b) that he was not arresting him and then asking § 87(2)(b) to show identification of the telephone. § 87(2)(g) § 87(2)(b) did not remember if PO Schulman said anything else. § 87(2)(b) entered the code to unlock his

telephone and proved that the telephone was his.

§ 87(2)(b) showed his unlocked telephone to PO Schulman, who immediately grabbed the telephone and attempted to pull it away. § 87(2)(b) was holding the telephone with his right hand by the base near the home button while PO Schulman held it with both hands and had his two thumbs on the screen. PO Schulman attempted to take it away but § 87(2)(b) did not release the telephone. PO Schulman told § 87(2)(b) to let go of the telephone, and § 87(2)(b) asked why. PO Schulman instructed § 87(2)(b) to let go of the telephone two more times. § 87(2)(b) heard the telephone crack, and PO McKnight also told § 87(2)(b) to release the telephone. § 87(2)(b) complied. In his telephone statement, § 87(2)(b) said that after PO Schulman had the telephone in his possession, he began to squeeze it to the point it made a cracking sound.

PO Schulman examined the telephone by looking at the sides, front and back of the telephone and then returned it to § 87(2)(b). PO Schulman had examined the telephone for approximately two minutes. § 87(2)(b) did not see PO Schulman search the content of the telephone. PO Schulman said that a lot of telephones were stolen from the neighborhood, and § 87(2)(b) said that he was from Brooklyn.

Both officers began walking toward their patrol car when § 87(2)(b) saw that the screen of his telephone was cracked. § 87(2)(b) said that he became “rowdy” by yelling at PO Schulman about the cracked screen on his telephone. Other members of the group also accused PO Schulman of cracking the telephone, and PO Schulman replied that it was already broken. The officers got in their car and drove off. The entire incident lasted approximately ten to fifteen minutes. § 87(2)(b) and his associates did not use profanity when they spoke to the officers. § 87(2)(b) said that his demeanor was “proper” until he saw that his telephone was cracked.

Witness: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male, who is 6’4” tall, 170 pounds, with short black hair and brown eyes. § 87(2)(b)

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on July 2, 2013 (encl. 6A-6B).

On June 15, 2013, at approximately 2:45 p.m., § 87(2)(b) was standing in front of a convenience store located on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Staten Island. § 87(2)(b) was with § 87(2)(b) and a group of approximately eight to ten people, some of them were identified via the CCRB investigation as § 87(2)(b) and § 87(2)(b). Prior to arriving at the incident location, § 87(2)(b) and § 87(2)(b) were visiting § 87(2)(b)'s cousin, § 87(2)(b) at his house. They all then walked from § 87(2)(b) house to the incident location, where they met the rest of the group who were friends of § 87(2)(b). The walk was approximately two to three blocks, and they did not stop or greet anyone on the way to the convenience store. § 87(2)(b) greeted the members of the group by giving them high-fives, taps and pounds. § 87(2)(b) did not see anything exchanged between § 87(2)(b) and the members of the group. § 87(2)(b) and § 87(2)(b) did not have any physical contact with any of the members of the group.

After about a minute or two, § 87(2)(b) observed a patrol car drive out of the nearby housing developments. The patrol car turned right and stopped at the next intersection. § 87(2)(b) looked at the officers, and the officers observed the group for approximately fifteen to twenty seconds. The group broke up with § 87(2)(b) and two to three individuals, who were identified via the CCRB investigation as § 87(2)(b) and § 87(2)(b) remaining outside, while the rest of the group went into the convenience store. § 87(2)(b) explained that the reason the group broke up was because he believed that the officers

could stop and question them if they were in a large group. Two uniformed police officers, identified via the video as PO Schulman and PO McKnight, exited the car. PO Schulman was described as a muscular white or Hispanic male in his late twenties to early thirties, approximately 6'1" tall and with short hair. PO McKnight was a light skinned black female in her middle twenties, approximately 5'5" to 5'6" tall, average built and with long brown hair.

§ 87(2)(b) stood by a wall approximately ten feet away from § 87(2)(b). PO Schulman approached § 87(2)(b) and addressed him by his first name. PO Schulman asked § 87(2)(b) if he knew where the guns were, and § 87(2)(b) said that he had no idea what PO Schulman was talking about. § 87(2)(b)'s pants were sagging and he pulled them up. § 87(2)(b) looked away and when he looked back at § 87(2)(b) he saw § 87(2)(b) with his arms behind his back. § 87(2)(b) did not see PO Schulman make any physical contact with § 87(2)(b) and § 87(2)(b) was not in handcuffs. PO Schulman informed § 87(2)(b) that he was not under arrest but needed to be searched. § 87(2)(b) did not respond. The members of the group were just standing and watching the incident. No one was yelling or using profanity towards the officers. However, one individual was asking PO Schulman why he was searching § 87(2)(b) and stated that they were not doing anything illegal. § 87(2)(b) did not see PO Schulman search § 87(2)(b).

§ 87(2)(b) pulled out his telephone and began recording the incident. PO Schulman changed his attention to § 87(2)(b) and asked if it was his telephone. § 87(2)(b) said yes, and PO Schulman asked him to show the identification for the telephone. § 87(2)(b) entered the unlock code and PO Schulman attempted to take it away from § 87(2)(b) with one hand. PO Schulman did not issue any instructions to § 87(2)(b) prior to grabbing the telephone. § 87(2)(b) heard the telephone crack. § 87(2)(b) jerked his hand back. PO Schulman still held the telephone and § 87(2)(b) relinquished it. PO Schulman examined the telephone for forty five seconds to a minute. § 87(2)(b) was standing quietly watching PO Schulman examine his telephone. § 87(2)(b) saw PO Schulman swipe through the telephone but he did not see what content, if any, PO Schulman was looking at. PO McKnight then told PO Schulman to return the telephone to § 87(2)(b) and PO Schulman complied. Both officers went back to their patrol car when § 87(2)(b) discovered that his telephone was damaged. § 87(2)(b) recorded the officers' names and by the time they drove off.

Attempts to Contact Civilians

The CCRB was unable to obtain a statement from § 87(2)(b). On June 20, 2013, a please call letter was sent to § 87(2)(b) (encl. 17G). A total of six telephone calls were made to § 87(2)(b) between June 20, 2013, and August 8, 2013, and six voice mail messages were left. On July 22, 2013, a final please call letter was sent to § 87(2)(b) (encl. 17I). § 87(2)(b)

On August 14, 2013, a search of the NYC Department of Correction website on disclosed that § 87(2)(b) was incarcerated (encl. 13V). A search of the NYC Department of Correction website on August 16, 2013, disclosed that § 87(2)(b) was released on his own recognizance on August 14, 2013.

On September 4, 2013, the CCRB called § 87(2)(b) and spoke to his mother, who provided a telephone number to contact § 87(2)(b). On September 4, 2013, the CCRB contacted § 87(2)(b) at the number provided by his mother and he said that he was busy and asked to call him back in 30 minutes. The CCRB called § 87(2)(b) an hour later and a voice message was left. On September 11, 2013, the CCRB called § 87(2)(b) for the tenth time and left a voice message. As of March 20, 2014, the US Postal Service did not return the letters to the CCRB and § 87(2)(b) did not contact the CCRB in response to the letters and the voice

messages.

The CCRB was unable to obtain a statement from § 87(2)(b). A search of Lexis Nexis on August 12, 2013, did not disclose any telephone numbers for § 87(2)(b) and did not yield any matching results (encl. 16A). On February 3, 2014, a please call letter was sent to § 87(2)(b) at the address listed in PO Schulman's memo book (encl. 17A). On February 12, 2014, the US Postal Service returned the letter to the CCRB marked as "attempted – not known unable to forward" (encl. 20A-20B).

The CCRB was unable to obtain a statement from § 87(2)(b). On August 12, 2013, a please call letter was sent to § 87(2)(b) to the address listed in PO Schulman's memo book (encl. 17A). On August 20, 2013, the US Postal Service returned the please call letter to the CCRB marked as "insufficient address unable to forward" (encl. 20C-20D). On August 12, 2013, a search of Lexis Nexis did not disclose any telephone numbers for § 87(2)(b) or showed matching results (encl. 16B-16F).

PO Schulman had a telephone number § 87(2)(b) or § 87(2)(b) which could have been the number to the victim of the cell phone theft. On May 8, 2014, the CCRB called § 87(2)(b). § 87(2)(b) answered the call and said she has never been to Staten Island and did not have her cell phone stolen. § 87(2)(b) did not come in contact with the NYPD on the day of the incident, and she did not know PO Shulman.

On May 8, 2014, the CCRB called § 87(2)(b). A male individual answered the telephone and the undersigned investigator introduced himself and explained that the call was from the CCRB. The male individual was asked for his name, and he refused to identify himself. When the undersigned explained that the CCRB was attempting to identify someone who came in contact with the police on June 16, 2013, the male individual said that the undersigned had the wrong number and hung up the telephone.

Results of Field Work

On July 22, 2014, the undersigned called § 87(2)(b), located at the corner of § 87(2)(b) and § 87(2)(b) in Staten Island. An individual who introduced himself only as § 87(2)(b) asked to call back after 1:00 p.m. in order to speak to his boss § 87(2)(b). A call was later placed to § 87(2)(b) who did not know anything about the incident. § 87(2)(b) said that he would talk to his employees to see if they saw the incident and agreed to call back in a couple of days with the results. On August 12, 2013, Inv. Sazonov, Inv. Schiavo and Inv. Paul spoke to § 87(2)(b) at the § 87(2)(b) in Staten Island. § 87(2)(b) said that he talked to his employees and they did not remember the incident.

On August 12, 2013, the undersigned visited the neighboring § 87(2)(b) at § 87(2)(b) and a worker there said that they close at 1:00 p.m. on Saturdays. The undersigned then spoke to a worker from § 87(2)(b) located at § 87(2)(b), and no one there had any information about the incident. A please call letter was left for the manager to call the CCRB. As of March 20, 2014, no one from the spa salon called the CCRB in response to the letter.

NYPD Statements:

Subject Officer: PO BRIAN SCHULMAN

- PO Brian Schulman is a § 87(2)(b)-old white male, who is 5'5" tall, 160 pounds, with blond hair and blue eyes.
- PO Schulman is assigned to the 120th Precinct. On the day of the incident, PO Schulman worked in uniform from 9:30 a.m. to 6:05 p.m. with PO McKnight. The officers were assigned to housing patrol in marked RMP 3881.

Memo Book Entries

PO Schulman recorded in his memo book that on June 16, 2013, at 3:00 p.m., he was assigned a report of larceny of an iPhone at West Brighton Park. The perpetrator was a black male between fifteen and eighteen years of age and in a company of three to four other black males. One of the perpetrators was with braces and red baseball hat. The victim to report at the stationhouse. At 3:40 p.m., PO Schulman stopped four males in regards to the larceny of an iPhone at § 87(2)(b). The males stopped were identified as § 87(2)(b) (red had and braces), § 87(2)(b), § 87(2)(b), § 87(2)(b) with possible iPhone noted in the larceny, § 87(2)(b), § 87(2)(b) and § 87(2)(b). When males saw police, two males went into a delicatessen, while other males walked away but stayed near the delicatessen. PO Schulman waited for the perpetrator who matched the description and other male with a telephone to leave the store. PO Schulman approached the four males and asked if the cell phone was his property, referring to § 87(2)(b). § 87(2)(b) at first refused to acknowledge the officers. When PO Schulman informed the individuals about the petite larceny that occurred in the park, § 87(2)(b) then identified the telephone as his. While § 87(2)(b) quickly placed his hands into his pants and was immediately “250ed” for weapons. All males were identified and released. At 6:45 p.m., PO Schulman prepared four reports in regards to the stop. (encl. 7A-7C).

Stop, Question and Frisk Reports

PO Schulman prepared two Stop, Question and Frisk reports pertaining to his stop of § 87(2)(b) and § 87(2)(b) (encl. 7D-7G).

In the Stop, Question and Frisk report for § 87(2)(b) PO Schulman noted that he stopped him because § 87(2)(b) fit the description and made furtive movements. PO Schulman noted that he observed § 87(2)(b) for approximately five minutes before the stop and explained the reason for the stop afterwards. PO Schulman indicated that he placed his hands on § 87(2)(b) because § 87(2)(b) reached for a suspected weapon. PO Schulman also indicated that no summons was issued to § 87(2)(b) that § 87(2)(b) was not frisked or searched and no weapons were found on § 87(2)(b). In the additional circumstances and factors for the stop, PO Schulman indicated that § 87(2)(b) was associating with persons known for their criminal activity, his proximity to the crime location, that he matched the description of the suspect from the victim of the cell phone theft, that § 87(2)(b) made evasive, false or inconsistent responses to his questions and changed direction at the sight of the officers.

In the Stop, Question and Frisk report for § 87(2)(b) PO Schulman noted that he stopped him because § 87(2)(b) fit the description of the suspect. PO Schulman noted that he observed § 87(2)(b) for approximately five minutes prior to conducting the stop, and that he explained to § 87(2)(b) the reason for the stop. PO Schulman indicated that he placed his hands on § 87(2)(b) because § 87(2)(b) reached for a suspected weapon. § 87(2)(b) was not arrested or issued a summons as a result of the stop. PO Schulman noted that he frisked § 87(2)(b) because § 87(2)(b) was making furtive movements and refused to comply with his directions. Additionally, PO Schulman wore that § 87(2)(b) placed his hands in his pants and was specifically directed to remove them two times. PO Schulman indicated that § 87(2)(b) was not searched and no weapons or contraband were found on § 87(2)(b). In the additional circumstances and factors for the stop, PO Schulman indicated that § 87(2)(b) was associating with persons known for their criminal activity, his proximity to the crime location, evasive, false or inconsistent responses to the officer’s questions and change of direction at sight of the officers. Additionally, PO Schulman indicated that § 87(2)(b) was in the area which high incidence of the reported offence.

CCRB Statement

PO Schulman was interviewed at the CCRB on October 9, 2013 (encl. 7H-7J).

On June 16, 2013, at approximately 3:40 p.m., PO Schulman and his partner, PO Kimberly McKnight, were patrolling the vicinity of § 87(2)(b) and § 87(2)(b) in Staten Island. Approximately forty minutes earlier, PO Schulman and PO McKnight had a pick-up of petit larceny of an iPhone with the description of the perpetrators. PO Schulman could not say whether there was a description of the iPhone provided. The victim of the larceny informed the officers that there were three to four black male perpetrators, one of them wore a red hat and had braces.

PO Schulman observed a group of individuals, known to the CCRB as § 87(2)(b) § 87(2)(b) and § 87(2)(b) who fit the description provided by the victim of petit larceny. The group was standing in the vicinity of § 87(2)(b) and § 87(2)(b) which is approximately one block away from where the larceny was committed. § 87(2)(b) had a cell phone and § 87(2)(b) wore a red hat and later PO Schulman saw that he had braces as well. The other two members of the group, § 87(2)(b) § 87(2)(b) and § 87(2)(b) were black males. PO Schulman was on the corner of § 87(2)(b) and § 87(2)(b) when he observed the group standing by a delicatessen. PO Schulman did not remember for how long he observed the group. The group split when they observed the officers: § 87(2)(b) § 87(2)(b) and § 87(2)(b) went into a delicatessen while § 87(2)(b) § 87(2)(b) and § 87(2)(b) proceeded to walk away. PO Schulman said that PO Schulman stated that he was giving this information based upon his memo book entries and not his independent recollection.

PO Schulman did not remember how long § 87(2)(b) § 87(2)(b) and § 87(2)(b) were in the delicatessen before they exited. PO Schulman decided to approach the group because they matched the description of the perpetrators. When § 87(2)(b) § 87(2)(b) and § 87(2)(b) exited the delicatessen, they met up with § 87(2)(b) § 87(2)(b) and § 87(2)(b) who were approximately twenty feet away from the delicatessen. PO Schulman did not remember what § 87(2)(b) § 87(2)(b) and § 87(2)(b) were doing other than walking away from his direction.

Upon approaching the group, PO Schulman and PO McKnight exited their vehicle and identified themselves as police officers. PO Schulman did not remember the exact command he was issuing to the group other than stop. § 87(2)(b) § 87(2)(b) and § 87(2)(b) ignored and “shrugged off” the officers. PO Schulman heard the group say something but he did not remember the specifics. PO Schulman did not remember whether PO McKnight was also giving any instructions. § 87(2)(b) § 87(2)(b) and § 87(2)(b) stopped and placed themselves against a wall.

PO Schulman first approached § 87(2)(b) because he wore a red hat and had braces. PO Schulman did not remember whether § 87(2)(b) clothes were baggy. PO Schulman knew § 87(2)(b) because he arrested him in the past. § 87(2)(b) placed his hands in his pants, and PO Schulman asked § 87(2)(b) multiple times to keep them out. § 87(2)(b) was placing his whole hand in his groin area. Because § 87(2)(b) had to be told numerous times to keep his hands out, PO Schulman feared for his safety. PO Schulman had a verbal exchange with § 87(2)(b) but he did not remember the specifics. PO Schulman frisked § 87(2)(b) for safety but did not remember where. PO Schulman did not remember if he observed any bulges on § 87(2)(b) prior to frisking him, and the frisk did not yield any results for weapons or the alleged iPhone. PO McKnight was standing next to PO Schulman but he did not remember whether she had any interaction with the members of the group.

The other members of the group were yelling but PO Schulman did not remember what.

PO Schulman did not remember whether the members of the group were using profanity. PO Schulman did not remember telling § 87(2)(b) “Stop fucking being annoying,” and he did not remember using any profanity.

PO Schulman then directed his attention to § 87(2)(b) who had an iPhone in his hand. PO Schulman asked § 87(2)(b) to prove that the iPhone belonged to him. § 87(2)(b) became rowdy but proved the cell phone was his. PO Schulman did not remember taking the telephone from § 87(2)(b) and he did not remember how § 87(2)(b) proved that the cell phone was his. PO Schulman did not remember whether § 87(2)(b)'s cell phone was ever in his possession. PO Schulman did not remember whether § 87(2)(b) was complying with proving that the cell phone belonged to him. PO Schulman did not remember placing his thumbs on the screen of § 87(2)(b)'s telephone, and he did not remember pressing on the screen of the cell phone. PO Schulman did not hear § 87(2)(b)'s telephone make any cracking sounds, and he did not break § 87(2)(b)'s telephone. PO Schulman did not remember trying to take away the iPhone from § 87(2)(b) by placing his fingers on the screen, causing it to crack. PO Schulman did not remember whether § 87(2)(b) complained that he broke his iPhone.

PO Schulman spoke to the parents of one of the members of the group later at the stationhouse. The parents wanted to know why he stopped § 87(2)(b) and § 87(2)(b). PO Schulman explained to the parents that the reason for the stop was because the matched the description of the perpetrators sought in relation to petit larceny of an iPhone. PO Schulman did not remember the parents complaining of a broken iPhone.

The video from IA 12 was played for PO Schulman. He acknowledged that he was the white male on the video and identified the female next to him as PO McKnight. Approximately twelve seconds into the video, PO Schulman said that he was speaking to a male he identified as § 87(2)(b) whom PO Schulman was not physically stopping or asking for proof of cell phone. PO Schulman said that § 87(2)(b) was not stopped and was there trying to ignite the situation between him, § 87(2)(b) and § 87(2)(b). At approximately twenty five seconds into the video, PO Schulman identified the individual with a red hat and a red t-shirt as § 87(2)(b). PO Schulman acknowledged that he told § 87(2)(b) “Stop fucking being annoying.” PO Schulman did not know what his comment was in response to. PO Schulman did not remember what happened immediately prior to the video being taken or immediately after. PO Schulman knew § 87(2)(b) from prior arrests and knew his parents.

PO Schulman was asked regarding his entries in the Stop, Question and Frisk report that he prepared for § 87(2)(b) which noted that § 87(2)(b) was associating with people known for their criminal activity as well as evasive, false or inconsistent responses to questions. PO Schulman reiterated that he identified both § 87(2)(b) and § 87(2)(b) in the video and that he arrested them on prior occasions. § 87(2)(b) is known to PO Schulman as someone who committed petit larcenies of cell phones in the past. PO Schulman further explained that he asked § 87(2)(b) twice to take his hands out of his pockets, and § 87(2)(b) ignored his requests. PO Schulman was asked to elaborate about his entry in the Stop, Question and Frisk report prepared for § 87(2)(b) which noted that he provided evasive, inconsistent or false responses to questions. PO Schulman said that he did not remember what responses § 87(2)(b) provided that were evasive, false or inconsistent.

Subject Officer: PO KIMBERLEY MCKNIGHT

- PO Kimberley McKnight is a § 87(2)(b)-old black female, who is 5'2" tall, about 200 pounds, with brown hair and brown eyes.
- PO McKnight is assigned to the 121st Precinct, but at the time of the incident she was assigned to the 120th Precinct. On the day of the incident, PO McKnight worked in uniform from 9:35 a.m. to 6:05 p.m. with PO Schulman. The officers were assigned to

Housing and worked in marked RMP 3881.

Memo Book Entries

PO McKnight recorded in her memo book that on June 16, 2013, at 3:00 p.m., she received a report of petit larceny of an iPhone. The perpetrator was described as a black male wearing a red hat, braces, grey shorts/pants, approximately fifteen to eighteen years old and with four other black males. The incident was later closed as unnecessary. At 3:40 p.m., four males were stopped in regards to the petit larceny opposite of § 87(2)(b). At 3:45 p.m., PO Schulman prepared four reports pertaining to the stop. (encl. 8A-8C)

CCRB Statement

PO McKnight was interviewed at the CCRB on October 17, 2013 (encl. 8D-8F).

On June 16, 2013, at approximately 3:40 p.m., PO McKnight and PO Schulman were patrolling the vicinity of § 87(2)(b) and § 87(2)(b) in Staten Island. PO McKnight observed a male, known to the CCRB as § 87(2)(b) who fit the description of the perpetrator wanted for a petite larceny of an iPhone. PO McKnight explained that at approximately 3:00 p.m. that day, she and PO Schulman had a pickup of a stolen iPhone, at the location which PO McKnight did not recall. The perpetrator was described as a black male who appeared to be 17 to 18 years old, wore a red hat, grey shorts or pants, had braces and was with four other black males. PO McKnight and PO Schulman decided to stop § 87(2)(b) who was in a group of three to four individuals, known to the CCRB as § 87(2)(b), § 87(2)(b) and § 87(2)(b). PO McKnight did not remember how far away she was from § 87(2)(b) when she observed him, and she did not remember for how long she observed § 87(2)(b) before approaching him.

PO Schulman and PO McKnight pulled up to the group and exited the vehicle. PO McKnight did not recognize the individual from prior interactions, and she did not know if PO Schulman did. PO McKnight did not remember whether PO Schulman addressed any of the individuals by their name. PO McKnight did not remember if any of the individuals attempted to flee or walk away from the officers. PO McKnight did not remember what she said to the group upon approaching them other than ordering them to stop. PO McKnight did not remember who PO Schulman approached first.

PO Schulman interacted with § 87(2)(b) but PO McKnight did not remember what was said. PO McKnight did not remember if PO Schulman interacted with any other member of the group besides § 87(2)(b). PO McKnight did not remember if § 87(2)(b) was frisked. After reviewing the Stop, Question and Frisk reports prepared for § 87(2)(b) and § 87(2)(b), PO McKnight remembered that § 87(2)(b) was frisked. § 87(2)(b) had a cell phone and PO Schulman tried to find out if it belonged to him. PO McKnight saw § 87(2)(b) with a cell phone when he was initially stopped. PO McKnight did not remember where the cell phone was when she saw it. PO McKnight did not remember if anyone else was frisked. PO McKnight did not remember whether § 87(2)(b) was complying with being frisked. PO McKnight did not remember for how long they spoke to § 87(2)(b) before PO Schulman frisked him. PO McKnight did not remember if § 87(2)(b) placed his hands in his pants. PO McKnight did not remember § 87(2)(b) changing direction at sight of the officers or fleeing. PO McKnight did not remember seeing any suspicious bulges on § 87(2)(b) and she did not remember if he was asked about carrying sharp objects. PO McKnight feared for her safety because the civilians outnumbered the officers.

PO McKnight did not remember talking about anyone getting arrested. PO McKnight did not hear PO Schulman say that he was not arresting anyone. PO McKnight did not remember

whether PO Schulman said, “Stop fucking being annoying.” PO McKnight did not recall if PO Schulman used any profanity during the incident.

PO McKnight did not remember how many times PO Schulman had to ask for the cell phone. PO McKnight was informed that § 87(2)(b) had the cell phone which PO Schulman was requesting. Other than § 87(2)(b) asking PO Schulman why he wanted to see the telephone, PO McKnight did not recall PO Schulman engaging in a struggle to obtain the telephone. PO McKnight did not remember instructing § 87(2)(b) to provide the telephone to PO Schulman. PO McKnight did not recall PO Schulman placing his thumbs on the screen of § 87(2)(b)'s iPhone. PO McKnight did not remember if § 87(2)(b) voluntarily handed his telephone to PO Schulman or whether PO Schulman had to grab it from § 87(2)(b)'s hands. PO McKnight did not hear § 87(2)(b)'s telephone make a cracking sound. PO McKnight did not see PO Schulman break the screen of § 87(2)(b)'s telephone. PO McKnight did not recall § 87(2)(b) complain that PO Schulman broke his telephone. § 87(2)(b) ultimately showed that the telephone belonged to him by entering a pass code. PO Schulman and PO McKnight left without making any arrests.

The video footage from IA 12 was played for PO McKnight. PO McKnight identified the individual wearing a red hat as the suspect in regards to the petit larceny. PO McKnight said that the video captured the beginning of the incident. No one was frisked before the video was taken. PO McKnight asked the group in the video where they were earlier. However, PO McKnight did not remember if the group provided an explanation.

NYPD Documents

Event Summary

A review of the Event Summary for the day of the incident did not disclose any reports of petit larceny of a cell phone (encl. 12A-12G).

Command Log

The Command Log for June 16, 2013, contains no entries pertaining to a Complaint Report being filed in regards to a stolen iPhone (encl. 11C-11G).

Complaint Report

A request for a complaint report (UF61) in regards to a stolen cell phone on June 16, 2013, yielded negative results (18G).

Status of Civil Proceedings

- § 87(2)(b) has not filed a notice of claim with the City of New York as of March 4, 2014, with regard to the incident (encl. 15A).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

[illegible]

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2C).
- This is the first CCRB complaint in which § 87(2)(b) has been listed as a victim (encl. 2E).
- This is the first CCRB complaint in which § 87(2)(b) has been listed as a victim (encl. 2F).
- This is the second CCRB complaint in which § 87(2)(b) was listed as a victim (encl. 2D):
 - § 87(2)(b)

- PO Kimberly McKnight has been a member of the service for seven years and there are no substantiated CCRB allegations against her (encl. 2A).
- PO Brian Schulman has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 2B).

Conclusion

Both PO Schulman and PO McKnight were identified via the video footage and they acknowledged interacting with § 87(2)(b), § 87(2)(b), and § 87(2)(b).

PO Schulman acknowledged frisking § 87(2)(b) and noted in the Stop, Question and Frisk report. However, § 87(2)(b), § 87(2)(b) and § 87(2)(b) did not allege that § 87(2)(b) was frisked, § 87(2)(g)

§ 87(2)(b) and § 87(2)(b)

Allegation B – Abuse of Authority: PO Kimberly McKnight stopped § 87(2)(b)

§ 87(2)(b) and § 87(2)(b)

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PO Schulman and PO McKnight acknowledged stopping § 87(2)(b) and § 87(2)(b) based on the entries in their memo books. PO Schulman and PO McKnight stated that § 87(2)(b) matched the description of a suspect wanted for petit larceny that occurred at approximately 3:00 p.m. that day. The perpetrator was described as a sixteen to eighteen year old black male with red hat and braces, who was in a group of four other black males. The video footage shows § 87(2)(b) wearing a red hat and a red t-shirt.

PO Shulman's memo book entries pertaining to the pickup of the petit larceny and the stop of § 87(2)(b) appear to have been written with the same ink. PO McKnight's memo book entries pertaining to the pickup of the petit larceny appear to be lighter in color compared to the entries pertaining to the stop of § 87(2)(b).

PO Schulman denied stopping § 87(2)(b) and § 87(2)(b). PO Schulman stated that they were free to leave but chose to stay with § 87(2)(b). PO McKnight remembered that PO Schulman only interact with § 87(2)(b) and § 87(2)(b).

§ 87(2)(g)

§ 87(2)(g)

Allegation C – Discourtesy: PO Brian Schulman spoke discourteously to § 87(2)(b)

It is undisputed that PO Schulman spoke discourteously to § 87(2)(b). The video footage shows § 87(2)(b) ask PO Schulman, “Why are you locking us up for?” to which PO Schulman responded, “I ain’t locking you up. So, stop fucking being annoying.” PO Schulman acknowledged making the statement during his CCRB interview.

P.G. 203-09 directs officers to be courteous and respectful (encl. 1A).

§ 87(2)(g)

Allegation D – Abuse of Authority: PO Brian Schulman damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged that PO Schulman cracked the screen of his cell phone by placing his thumbs over it and pulling it away from § 87(2)(b)'s hand. § 87(2)(g)

According to § 87(2)(b), PO Schulman tried to take the telephone away from § 87(2)(b) who refused to give it up. § 87(2)(b) then heard a cracking sound and saw § 87(2)(b) jerked his hand back. PO Schulman held was still holding on to the cell phone and § 87(2)(b) relinquished it.

PO Schulman denied breaking § 87(2)(b)'s telephone. PO Schulman did not remember if he ever took § 87(2)(b)'s telephone, and he did not remember placing his thumbs on the screen of § 87(2)(b)'s telephone.

PO McKnight acknowledged that PO Schulman had § 87(2)(b)'s telephone in his possession but she did not remember how he obtained it. PO McKnight did not remember if § 87(2)(b) voluntarily gave his telephone to PO Schulman, she did not remember if PO Schulman had to ask § 87(2)(b) for his telephone or where there was a struggle between two over the telephone.

§ 87(2)(g)

§ 87(2)(g)

Team: 4

Investigator: _____	<u>Stanislav A. Sazonov</u>	<u>08/19/2014</u>
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date